

## OFFENCES AGAINST PROPERTY

### THEFT – SECTION 378 to 382

#### MEANING:

In general, theft is committed when a person's property is taken without his consent by someone. For example,

A enters the house of B and takes B's watch without B seeing and puts it in his pocket with an intention to take it for himself. A commits theft. However, besides the ordinary meaning conveyed by the word theft, the scope of theft is quite wide.

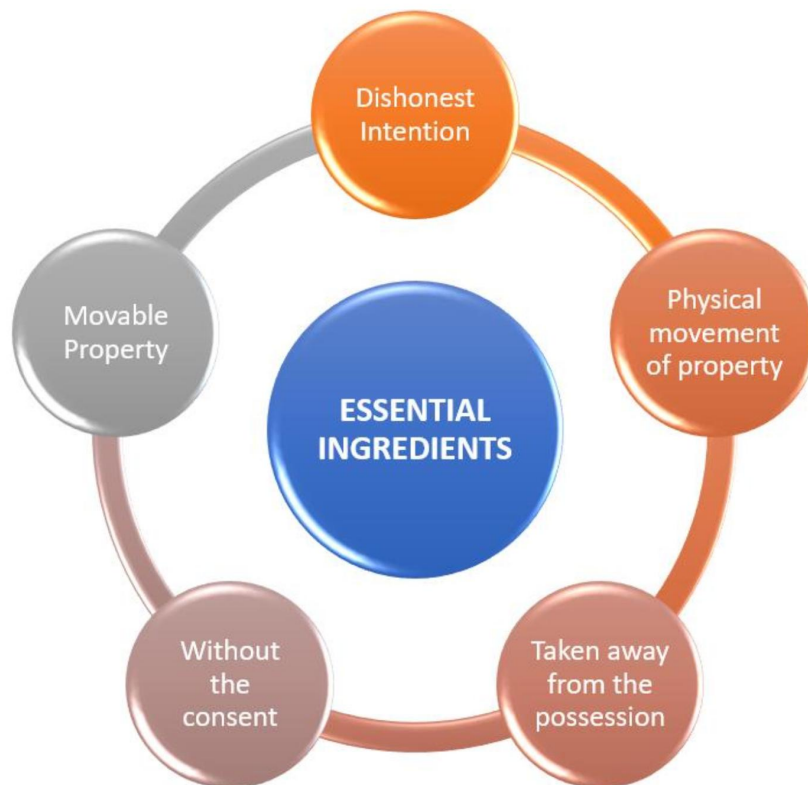
Section 378 of Indian Penal Code, 1860, defines theft as follows –

“Whoever, intending to take dishonestly any movable property out of the possession of any person without

that person's consent, moves that property in order to such taking, is said to commit theft.”

#### ESSENTIAL INGREDIENTS OF THEFT:

1. There must be a dishonest intention of a person to take the property.
2. Removal of movable property.
3. Such movable property must be taken away.
4. The property must be taken away from the possession of a person. In other words, there must be a possession of that property.
5. Such property must be taken away without the consent of such person.



**DISHONEST INTENTION:** There must be dishonest intention on the part of the offender. It is also called as malafied intention which can be representation in the form of mensrea. This mensrea is the base of the theft

Section 24 of IPC defines the term dishonestly. It means that there must be a wrongful loss to one or wrongful gain to another.

**Illustration:** A quietly takes money from B's purse for his spending. Here, A causes wrongful loss to B and is thus guilty of theft.

#### **CASE LAW: PYARELAL BHARGAVA VS STATE**

**Facts in brief:** The Appellant was a training cadet in the Indian Air Force Academy at Jodhpur. One day Mehra was due for flight in a Dakota as part of his training along with one Om Prakash, a flying cadet but Mehra and Phillips took off, not a Dakota, but a Harvard H.T. 822 at about 5a.m. (which was not the prescribed time). This was done without any authorization or without observing any of the formalities, which are prerequisites for an aircraft-flight. It was found that they force landed in Pakistan. Days later, they contacted the authorities in the Indian High Commission and on their way back to India, they were arrested at Jodhpur and prosecuted for the theft of the aircraft.

**Held:** Proof of intention to cause permanent deprivation of property to the owner, or to obtain a personal gain is not necessary for the purpose of establishing dishonest intention. All the ingredients of theft were fulfilled, and the flight constitutes theft of the aircraft.

#### **CASE LAW: PYARELAL BHARGAVA VS STATE**

**Facts in brief:** A govt. employee took a file from the govt. office, presented it to B, and brought it back to the office after two days.

**Held:** Permanent taking of the property is not required, even a temporary movement of the property with dishonest intention is enough and thus this was theft.

**MOVABLE PROPERTY:** The subject of theft is movable property. Immovable property cannot be stolen.

Explanation 1 of section 378: As long as a thing is attached to earth, not being movable, is not subject of theft. However, as soon as it is severed from the earth, it is capable of being the subject of theft

**Illustration:** A tree on Mr. Akash's land is not capable of being the subject of theft. However, if Mr. Ashish, with an intention to take the tree, cuts the tree, he

commits theft as soon as the tree is severed from the earth.

Further, Explanation 2 says that a moving affected by the same act that causes severance, may be theft

**MUST BE TAKEN AWAY OUT OF POSSESSION OF ANOTHER PERSON:** The property must be in possession of someone. A property that is not in possession of anybody cannot be a subject of theft. For example, wild dogs cannot be a subject of theft and so if someone takes a wild dog, it will not be theft. It is not



important whether the person who possess the thing is the rightful owner of that thing or not. If the thing is moved out of mere possession of someone, it will be theft.

**ILLUSTRATION:** Mr. Ankur, a coin collector, steals some coins from Mr. Baku, a fellow coin collector. Mr. Ankur finds out that they were his coins that were stolen earlier. Here, even though Mr. Baku was not the rightful owner of the coins, he was still in possession of them and so Mr. Ankur is guilty of theft.

**ILLUSTRATION:** A had taken a bus on hire purchase from B under the agreement that in case of default B has the right to take back the possession of the bus. A defaulted, and thereupon, B forcibly took the bus from C, who was the driver of the bus. C was the employee of A and thus, the bus was in possession of A. Therefore, taking the bus out of his possession was theft

#### **PHYSICAL MOVEMENT OF THE PROPERTY IS MUST**

- The property must be physically moved. It is not necessary that it must be moved directly. As per Explanation 3, moving the support or obstacle that keeps the property from moving is also theft.

**Illustration:** Removing the pegs to which bullocks are tied, is theft.

Further, as per Explanation 4, causing an animal to move, is also considered as moving the things that move in consequence.

**Illustration:** A meets a bullock carrying a box of treasure. He drives the bullock in a certain direction, in order that he may dishonestly take the treasure. As soon as the bullock begins to move, A has committed theft of the treasure.

#### **CASE LAW: BISHAKI'S CASE**

**Facts in brief:** The accused cut the string that tied the necklace in the neck of a woman, because of which the necklace fell.

**Held:** He caused sufficient movement of the property as needed for theft.

#### **PROPERTY MUST BE TAKEN WITHOUT CONSENT -**

In order to constitute theft, property must be taken

without the consent of person possessing it. As per Explanation 5, consent can be express or implied.

**ILLUSTRATION:** A, a good friend of B, goes to B's library and takes a book without express consent of B, with the intention of reading it and returning it. Here, A might have conceived that he had B's implied consent to take the book and so he is not guilty of theft.

**ILLUSTRATION:** A asks for charity from B's wife, and she gives A some clothes belonging to B, A may conceive that she has the authority to give B's clothes and so A is not guilty of theft.

#### **CASE LAW: CHANDLER'S CASE**

**Facts in brief:** A and B were both servants of C. A suggested B to rob C's store. B agreed to this and procured keys to the store and gave them to A, who then made duplicate copies. At the time of the robbery, they were caught because B had already informed C and to catch A red handed, C had allowed B to accompany A on the theft.

**Held:** B had the consent of C to move C's things but A did not and so A was held guilty of theft.

#### **THEFT OF ONE'S OWN PROPERTY**

As per the definition of theft given in section 378, it is not the ownership but the possession of the property that is important. A person may be a legal owner of a property but if that property is in possession, legally valid or invalid, of another, it is possible for the owner to commit theft of his own property.

**ILLUSTRATION:** A gives his watch to B for repairs. B repairs the watch but A does not pay the repairing charges, because of which B does not return the watch as a security. A forcibly takes his watch from B. Here, A is guilty of theft of his own watch.

**ILLUSTRATION:** A pawns his watch to B. He takes it out of B's possession, having not paid to B what he borrowed by pawning it, without B's consent. Thus, he

commits theft of his own property in as much as he takes it dishonestly.

### EXTORTION – SECTION 383 to 389

#### MEANING:

In Extortion, a person takes the property of another by threat without any legal justification. Section 383 defines extortion as follows –

Section 383 - Whoever intentionally puts any person in fear of any injury to that person, or to any other, and thereby dishonestly induces the person so put in fear to deliver to any person any property or valuable security or anything signed or sealed, which may be converted into a valuable security, commits extortion.

**ILLUSTRATION:** A threatens Z that he will keep Z's child in wrongful confinement, unless Z will sign and deliver to A a promissory note binding Z to pay certain monies to A. Z signs and delivers the note. A has committed extortion.

#### ESSENTIAL INGREDIENTS OF EXTORTION:

- (1) Intentionally puts any person in fear of injury  
To commit an offence of extortion, putting a person in fear of injury intentionally is a must. The fear of injury must be such that is capable of unsettling the mind of the person threatened and cause him to part with his property. Thus, it should take away the element of freeness and voluntariness from his consent.

**Please Note:** Please Note: The truth of the threat under this section is immaterial.

**ILLUSTRATION:** A threatens B that he will keep B's child in wrongful confinement, unless B will sign and deliver to A a promissory note binding B to pay certain moneys to A. B signs and delivers such note. A has committed extortion.

A's child is missing and B, who does not have A's child, threatens A that he will kill A's child unless A pays him 1 lac Rs, will amount to extortion

- (2) Dishonestly induces a person so put in fear to deliver to any person any property.

The second critical element of extortion is that the person who has been put to fear, must deliver his property to any person. Dishonest inducement means that the person would not have otherwise agreed to part with his property and such parting causes him a wrongful loss. Further, the property must be delivered by the person who is threatened. Though, it is not necessary to deliver the property to the person threatening.

**ILLUSTRATION:** A, by putting Z in fear of grievous hurt, dishonestly induces Z to sign or affix his seal to a blank paper and deliver it to A. Z signs and delivers the paper to A. Here, as the paper so signed may be converted into a valuable security. A has committed extortion.

### DISTINCTION BETWEEN THEFT AND EXTORTION

| Theft                                                 | Extortion                                                                                  |
|-------------------------------------------------------|--------------------------------------------------------------------------------------------|
| The property is taken by the offender without consent | The property is delivered to the offender by consent although the consent is not free.     |
| There is no element of threat.                        | There is an element of threat or instilling of fear because of which the consent is given. |
| Only movable property is subject to theft.            | Any kind of property can be subjected to extortion                                         |
| Offender takes the property himself.                  | Property is delivered to offender.                                                         |



## ROBBERY AND DACOITY – SECTION 390 to 402

### ROBBERY

#### MEANING:

Robbery is a severe form of either theft or extortion. In certain circumstances, a theft or an extortion gravitates to robbery.

Section 390 defines robbery as follows –

Section 390 - In all robbery there is either theft or extortion.

**When theft is robbery** - Theft is robbery if, in order to the committing of the theft or in committing the theft, or in carrying away or attempting to carry away property obtained by theft, the offender for that end, voluntarily causes or attempts to cause to any person death or hurt or wrongful restraint, or fear of instant death or of instant hurt or of instant wrongful restraint.

**Illustration:** A holds Z down, and fraudulently takes Z's money and jewels from Z's clothes, without Z's consent. Here A has committed theft, and, in order to the committing of that theft, has voluntarily caused wrongful restraint to Z. A has therefore committed robbery.

#### A THEFT BECOMES A ROBBERY:

1. When someone voluntarily causes or attempts to cause death, hurt, or wrongful restraint or fear of instant death, instant hurt, or instant wrongful restraint
2. The above act is done in order to the committing of theft or committing theft or carrying away or attempting to carry away property obtained by theft.

**When extortion is robbery** - Extortion is robbery if the offender at the time of committing the extortion is in the presence of the person put in fear, and commits the extortion by putting that person in fear of instant death, or of instant hurt, or of instant wrongful restraint to that person, or to some other person, and by so putting in fear, induces the person so put in fear then and there to deliver up the thing extorted.

**ILLUSTRATION:** A meets Z on the high road, shows a pistol, and demands Z's purse. Z, in consequence, surrenders his purse. Here A has extorted the purse from Z by putting him in fear of instant hurt, and being at the time of committing the extortion in his presence. A has therefore committed robbery.

**ILLUSTRATION:** A meets Z and Z's child on the high road. A takes the child, and threatens to fling it down a precipice, unless Z delivers his purse. Z, in consequence, delivers his purse. Here A has extorted the purse from Z, by causing Z to be in fear of instant hurt to the child who is there present. A has therefore committed robbery on Z.

#### EXTORTION BECOMES A ROBBERY:

1. When a person commits extortion by putting another person in fear of instant death, hurt, or wrongful restraint, and
2. Such a person induces the person put in such fear to deliver the property then and there and
3. The offender is in the presence of the person put in such fear at the time of extortion

### DACOITY

#### MEANING:

A Robbery committed by five or more persons is dacoity.

Section 391 - When five or more persons conjointly commit or attempt to commit robbery, or where the whole number of persons conjointly committing or attempting to commit a robbery, and persons present and aiding such commission or attempt, amount to five or more, every person so committing, attempting, or aiding is said to commit dacoity.

Conjointly implies a collective effort to commit or attempting to commit the action. It is not necessary that all the persons must be at the same place but they should be united in their efforts with respect to the offence. Thus, persons who are aiding the offence are also counted and all are guilty of dacoity.

It is necessary that all the persons involved must have common intention to commit the robbery. Thus, dacoity is different from robbery only in the respect of number of people committing it and is treated separately because it is considered to be a graver crime.

**ILLUSTRATION:** A group of 7 members namely A, B, C, D, E, F, G, and H meets X on the high road. They show pistol, and demands Z's Car along with his purse. Z, in consequence, surrenders his Car and purse. Here they committed Dacoity.



## **CRIMINAL MISAPPROPRIATION OF PROPERTY SECTION 403-404**

### **MEANING:**

Criminal misappropriation means dishonest misappropriation or conversion of movable property which is already in the possession of the offender.

In the case of criminal misappropriation, the offender gets the possession of the movable property

innocently but subsequently uses the property dishonestly for his own benefit.

**ILLUSTRATION:** A takes property belonging to Z out of Z's possession in good faith, believing, at the time when he takes it, that property belongs to himself. A is not guilty of theft; but if A, after discovering his mistake, dishonestly appropriates the property to his own use he is guilty of Criminal Misappropriation of Property.

Section 403 of the Indian Penal Code deals with criminal misappropriation of property. Section 403 says that, whoever dishonestly misappropriates or converts to his own use any movable property, shall be punished with imprisonment of either description for a term which may extend to two years, or with fine, or with both.

### **ESSENTIAL INGREDIENT OF CRIMINAL MISAPPROPRIATION:**

- (i) The property must be a movable one.
- (ii) There should be a dishonest misappropriation or conversion of a property for a person's own use

### **Retention of money paid by mistake**

Where a money is paid by mistake to a person, and such person, either at the time of receipt or at any time subsequently, discovers the mistake, and determines to appropriate the money, that person is guilty of criminal misappropriation

## **CRIMINAL BREACH OF TRUST SECTION 405-409**

### **MEANING:**

Section 405 of the Code defines Criminal Breach of Trust. Under section 405, whoever, being in any manner entrusted with property, or with any dominion over property, dishonestly misappropriated or converts to his own use that property, or dishonestly uses or disposes of that property in violation of any

direction of law prescribing the mode in which such trust is to be discharged, or any legal contract, express or implied, which he has made touching the discharge of such trust or willfully suffers any other person so to do, commits 'criminal breach of trust'.

**ILLUSTRATION:** A, being executor to the will of a deceased person, dishonestly disobeys the law which directs him to divide the effects according to the will, and appropriated them to his own use. A has committed criminal breach of trust.

### **A PERSON IS LIABLE TO BE PUNISHED FOR CRIMINAL BREACH OF TRUST IF:**

- (i) He should have been entrusted with property or with any dominion over property.
- (ii) He should have dishonestly misappropriated or converted the property so entrusted to his own use; or
- (iii) He should have used or disposed of that property in violation of any direction of law prescribing the mode in which trust was to be discharged or of any legal contract

## **CHEATING SECTION 414 to 420**

### **MEANING:**

Cheating is an offence defined under Section 415 of Indian Penal Code. It states that "Whoever, by deceiving any person, fraudulently or dishonestly induces the person so deceived to deliver any property to any person, or to consent that any person shall retain any property, or intentionally induces the person so deceived to do or omit to do anything which he would not do or omit if he were not so deceived, and which act or omission causes or is likely to cause damage or harm to that person in body, mind, reputation or property, is said to "cheat".

A dishonest concealment of facts is deception within the meaning of this section.

**ILLUSTRATION:** A, by falsely pretending to be in the Civil Service, intentionally deceives Z, and thus dishonestly induces Z to let him have on credit goods for which he does not mean to pay. A cheat.

**ILLUSTRATION:** A, by exhibiting to Z a false sample of an article, intentionally deceives Z into believing that



the article corresponds with the sample, and thereby dishonestly induces Z to buy and pay for the article. A cheat.

**ILLUSTRATION:** A, by tendering in payment for an article a bill on a house with which A keeps no money, and by which A expects that the bill will be dishonored, intentionally deceives Z, and thereby dishonestly induces Z to deliver the article, intending not to pay for it. A cheat.

#### **ESSENTIAL INGREDIENTS OF CHEATING:**

- (1) **Deception:** It is the essence of the offence of cheating. The word "deceiving" means causing to believe what is false, or misleading as to matter of fact, or leading into error.
- (2) **Fraudulent or dishonest intention:** Cheating amounts to inducing the victim to enter into a bargain, which he would not enter into, if he knew the real facts. A breach of promise may be unethical, but cannot be criminal unless the promise and its breach were the result of the necessary mens rea.
- (3) **Any property:** The word 'property' has been used in its widest sense. The 'property' does not have to be a thing which has market or pecuniary value. Thus, documents like passport, admit-cards, etc. are also 'property' under this section.

#### **MISCHIEF SECTION 425 to 440**

##### **MEANING:**

Mischief can be understood as when an individual intends to perform an act or has the knowledge that his/her act will create hindrance in allowing another person to enjoy the benefit of their property by one means or other. However, this act can be even against the public or against a specific person.

Section 425 of the Indian Penal Code, 1860, states that whoever with intent to cause, or knowing that he is likely to cause, wrongful loss or damage to the public or to any person, causes the destruction of any property, or any such change in any property or in the situation thereof as destroys or diminishes its value or utility, or affects it injuriously, commits "mischief".

Explanation 1.-It is not essential to the offence of mischief that the offender should intend to cause loss

or damage to the owner of the property injured or destroyed. It is sufficient if he intends to cause, or knows that he is likely to cause, wrongful loss or damage to any person by injuring any property, whether it belongs to that person or not.

Explanation 2.-Mischief may be committed by an act affecting property belonging to the person who commits the act, or to that person and others jointly.

**ILLUSTRATION:** A voluntarily burns a valuable security belonging to Z intending to cause wrongful loss to Z. A has committed mischief.

**ILLUSTRATION:** A introduces water into an ice-house belonging to Z and thus causes the ice to melt, intending wrongful loss to Z. A has committed mischief.

#### **ESSENTIAL INGREDIENTS OF MISCHIEF:**

- (1) Intention or the knowledge of the act (mens rea);
- (2) The act resulting in destruction, damage or change in the property or situation thereof; and (actus rea)
- (3) The change must lead to diminishing the value or utility.

#### **CRIMINAL TRESSPASS SECTION 441 to 462**

##### **MEANING:**

Any person who enters the property of another person without permission of the possessor of the property is said to commit the offence of **Trespass**.

When a person unlawfully enters into private property of another person or unlawfully remains into such property with criminal intentions, is said to commit "Criminal Trespass".

Section 441 of the Indian Penal Code, 1860, defines the offence of Criminal trespass. It states that whoever enters into or upon property in the possession of another with intent to commit an offence or to intimidate, insult or annoy any person in possession of such property, or having lawfully entered into or upon such property, unlawfully remains there with intent thereby to intimidate, insult or annoy any such person, or with intent to commit an offence, is said to commit "criminal trespass".

**ILLUSTRATION:** A enters into B's property, unlawfully and without his permission, to steal his car, then A would be liable for theft and criminal trespass.

**ESSENTIAL INGREDIENTS OF CRIMINAL TRESPASS:**

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|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <p><b>(1)</b> There must be unauthorized entry into or upon another's property against the will of the person in the possession: or</p> <p><b>(2)</b> An authorized entry lawfully obtained but unlawfully remaining therein; and</p> | <p><b>(3)</b> Such entry or unlawful stay must be with an intention:</p> <ul style="list-style-type: none"><li>a. To commit an offence or</li><li>b. To intimidate, insult or annoy the person in possession of the property.</li></ul> |
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